INDEPENDENT CONTRACTOR AGREEMENT

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How to use this template

This is a blank form. Every square-bracketed item, like **[CLIENT NAME]**, is a blank for you to complete. Nothing here is filled in for you, and nothing here is a recommendation.

- Fill in each bracketed blank, or remove the bracket and leave the line blank if the item does not apply to your situation.
- Some sections are marked **[OPTIONAL]**. If you do not want a section to be part of your agreement, delete the whole section before anyone signs.
- Where a clause lists choices, the choices are shown in brackets separated by "or". Pick one and delete the other.
- Read the finished document from start to finish before signing. Make sure every blank is either filled in or deliberately removed.
- Keep a copy of the signed agreement for each Party.

Whether this template fits your situation, and whether the choices you make are right for you, is a question for you and, if you want help with it, a licensed attorney in your state.

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1. The Parties

This Independent Contractor Agreement ("Agreement") is entered into on **[EFFECTIVE DATE]** ("Effective Date") by and between:

Client: **[CLIENT NAME]**, with a principal address at **[CLIENT ADDRESS]** ("Client"), and

Contractor: **[CONTRACTOR NAME]**, with a principal address at **[CONTRACTOR ADDRESS]** ("Contractor").

Client and Contractor may each be called a "Party" and together the "Parties."

2. Services

Contractor will provide the following services ("Services"):

[DESCRIBE THE SERVICES IN DETAIL — what work will be done, what deliverables (if any) will be provided, and any standards or specifications the Parties have agreed on]

Any change to the Services must be agreed in writing by both Parties before the changed work begins.

3. Term

This Agreement begins on the Effective Date and ends on the earliest of the following:

- **[END DATE]**;
- completion of the Services and final payment; or
- termination under Section 13.

[OPTIONAL — EITHER PARTY MAY TERMINATE AS PROVIDED IN SECTION 13]

4. Compensation

Client will pay Contractor as follows:

- Rate or amount: **[RATE OR AMOUNT — for example, a flat fee, an hourly rate, or a per-deliverable amount]**
- Payment schedule: **[PAYMENT SCHEDULE]**
- Invoicing terms: **[INVOICING TERMS — for example, invoices submitted by email or mail, and what information each invoice must contain]**
- Payment due: **[NUMBER]** days after Client receives a correct invoice.

- Method of payment: **[PAYMENT METHOD]**

[OPTIONAL — LATE PAYMENT: If the Parties want a late-payment term, add it here, stating the amount or rate and when it applies. Laws about late fees and interest vary by state.]

[OPTIONAL — WITHHOLDING: If the Parties want a withholding term, add it here, stating what may be withheld and when.]

5. Independent Contractor Status

The Parties intend that Contractor is an independent contractor and not an employee of Client. Consistent with that intent:

- **Control over how the work is done.** Contractor decides the manner, means, and methods used to perform the Services, subject to any specifications the Parties agreed on in Section 2.
- **Own tools and help.** Contractor supplies Contractor's own tools, equipment, and materials unless the Parties agree otherwise in writing. Contractor may engage helpers or subcontractors **[CHOOSE ONE: only with Client's prior written consent / without Client's prior consent]**.
- **No employee benefits.** Contractor is not eligible for any employee benefits from Client, including health insurance, retirement contributions, paid leave, or severance.
- **Taxes.** Contractor is responsible for Contractor's own taxes under Section 6.
- **No authority to bind.** Contractor has no authority to sign for, contract for, or otherwise bind Client, and will not hold itself out as having that authority.
- **No partnership or agency.** Nothing in this Agreement creates a partnership, joint venture, agency, or employment relationship between the Parties.
- **Client's own obligations.** Client will not treat Contractor as an employee for payroll, benefits, or withholding purposes.

Worker classification rules vary by state and under federal law, and how a worker is classified depends on the facts and on applicable law. This section states what the Parties intend. It does not by itself decide how a worker is classified, and the Parties are each responsible for their own compliance with the laws that apply to them.

6. Taxes

Contractor is responsible for all taxes on amounts paid to Contractor under this Agreement, including income tax and self-employment tax, and for filing Contractor's own tax returns.

If required by law, Client may issue an information return to Contractor, such as IRS Form 1099-NEC, reporting amounts paid under this Agreement. Contractor will provide Client with the information Client needs to prepare that form, and will provide an updated taxpayer identification number if it changes.

[OPTIONAL — OTHER TAX TERMS: If the Parties want to address sales tax, VAT, or similar taxes, add it here.]

7. Expenses

[CHOOSE ONE — delete the option that does not apply:]

Option A — Each Party bears its own expenses. Each Party bears its own costs and expenses in connection with this Agreement.

Option B — Client reimburses pre-approved expenses. Client will reimburse Contractor for expenses that Client approved in writing before the expense was incurred, at cost, and only if Contractor provides receipts or other reasonable documentation. Contractor bears any expense that was not pre-approved in writing.

8. Confidentiality

[OPTIONAL — IF APPLICABLE]

"Confidential Information" means non-public information that one Party gives to the other in connection with this Agreement, and that is marked confidential or would reasonably be understood to be confidential. Confidential Information does not include information that the receiving Party can show was already known to it without a duty of confidentiality, is or becomes public through no fault of the receiving Party, or is independently developed by the receiving Party without using Confidential Information.

The receiving Party will use Confidential Information only to perform or receive the Services, will protect it with at least reasonable care, and will not disclose it to anyone else except to those of its personnel or advisors who need to know it and are bound by confidentiality obligations at least as protective as this section.

If the receiving Party is required by law or by a court or government authority to disclose Confidential Information, it will, where lawful, give the other Party prompt notice so the other Party may seek a protective order, and will disclose only the portion it is required to disclose.

These obligations continue for **[NUMBER]** years after this Agreement ends, and continue for as long as information remains a trade secret if the applicable law protects it for longer.

9. Intellectual Property and Work Product

[CHOOSE ONE — delete the option that does not apply. Neither option is recommended over the other; the right choice depends on your situation.]

Option A — Contractor assigns work product to Client. Contractor assigns to Client all right, title, and interest in the work product Contractor creates specifically for Client under this Agreement ("Work Product"), effective when Contractor receives full payment for that Work Product. Until full payment is received, Contractor owns the Work Product. Contractor will sign any documents reasonably needed to record Client's ownership. Contractor keeps ownership of its pre-existing materials, tools, and general know-how, and grants Client a non-exclusive license to use any of those that are built into the Work Product, to the extent needed for Client to use the Work Product for its intended purpose.

Option B — Contractor retains ownership and licenses to Client. Contractor owns all right, title, and interest in the Work Product and in any pre-existing materials, tools, and know-how used to create it.

Contractor grants Client a **[CHOOSE ONE: non-exclusive / exclusive]** license to use the Work Product for **[DESCRIBE THE PERMITTED USES, TERRITORY, AND DURATION]**. **[OPTIONAL — STATE WHETHER THE LICENSE IS TRANSFERABLE OR SUBLICENSABLE.]**

[OPTIONAL — THIRD-PARTY MATERIALS: If the Services involve materials owned by someone else, list them here along with any license terms that apply.]

[OPTIONAL — MORAL RIGHTS: If the Parties want to address moral rights or similar rights, add a term here. Whether and how those rights can be waived or transferred varies by state and by country.]

10. Insurance

[OPTIONAL — IF REQUIRED. Delete this section if it does not apply.]

Contractor will maintain the following insurance during the term of this Agreement:

- Type and amount: **[INSURANCE TYPE AND LIMITS]**
- Additional insured (if any): **[NAME OR "NONE"]**
- Evidence: Contractor will provide a certificate of insurance **[ON REQUEST / BEFORE WORK BEGINS / OTHER]**

11. Non-Solicitation and Non-Competition

[OPTIONAL — SENSITIVE. Delete this section if it does not apply. These clauses are treated differently from state to state, and some states limit or prohibit them. Whether a clause like this applies to your situation, and how it must be written, varies by state and by the person's role. This template does not tell you whether to use one.]

If the Parties choose to include a clause here, complete only the parts they want, and delete the rest:

Non-solicitation of clients or customers. During the term of this Agreement and for **[NUMBER]** months after it ends, Contractor will not **[DESCRIBE THE CONDUCT THAT IS PROHIBITED, AND WHICH CLIENTS OR CUSTOMERS IT COVERS]**. **[OPTIONAL — LIST SPECIFIC CLIENTS OR CUSTOMERS HERE, OR DESCRIBE THE GROUP.]**

Non-solicitation of personnel. During the term of this Agreement and for **[NUMBER]** months after it ends, Contractor will not **[DESCRIBE THE CONDUCT THAT IS PROHIBITED, AND WHICH PERSONNEL IT COVERS]**.

Non-competition. During the term of this Agreement and for **[NUMBER]** months after it ends, Contractor will not **[DESCRIBE THE PROHIBITED ACTIVITY, THE GEOGRAPHIC AREA, AND THE SCOPE]**.

[OPTIONAL — STATE THE REASON THE PARTIES ARE INCLUDING THIS SECTION, IF THEY WISH TO.]

If any part of this section is found not to apply or not to be permitted where the Parties are located, the rest of this Agreement is not affected.

12. Termination

[CHOOSE ONE — delete the option that does not apply:]

Option A — Termination for convenience. Either Party may terminate this Agreement for any reason by giving **[NUMBER]** days' written notice to the other Party.

Option B — Termination only for cause. Either Party may terminate this Agreement immediately if the other Party materially breaches this Agreement and does not cure the breach within **[NUMBER]** days after receiving written notice describing the breach.

Option C — Both of the above. Either Party may terminate this Agreement for convenience under Option A, or for cause under Option B.

Effect of termination. When this Agreement ends, Client will pay Contractor for Services performed and expenses properly incurred through the end date, and Contractor will deliver to Client any completed work product and any Client materials or Confidential Information in Contractor's possession. Sections that by their nature are meant to continue after the Agreement ends — including Section 5 (Independent Contractor Status, as to work already performed), Section 6 (Taxes), Section 8 (Confidentiality, if included), Section 9 (Intellectual Property, if included), Section 11 (if included), this effect-of-termination paragraph, Section 13 (Governing Law), and Section 14 (General), will continue to apply.

13. Governing Law

This Agreement is governed by the laws of the State of **[STATE]**, without regard to its conflict-of-laws rules. The Parties chose this state: **[OPTIONAL — STATE THE REASON, IF THEY WISH TO.]**

[OPTIONAL — VENUE OR DISPUTE RESOLUTION: If the Parties want to choose a court location, an arbitration process, or a mediation step before filing a claim, add it here and describe the process. The rules on which terms are permitted, and whether they apply, vary by state.]

14. General

Entire agreement. This Agreement is the entire agreement between the Parties about its subject matter. It replaces any earlier discussions or agreements, written or oral, about that subject matter.

Amendments. Any change to this Agreement must be in writing and signed by both Parties.

Assignment. Neither Party may assign this Agreement without the other Party's prior written consent, except **[CHOOSE ONE: to a successor in connection with a sale of all or substantially all of the assigning Party's business or assets / as otherwise stated here]**.

Severability. If a provision of this Agreement is found not to apply or not to be permitted, the rest of this Agreement stays in effect and the provision will be limited to the smallest extent needed.

No waiver. If a Party does not enforce a provision once, that does not mean the Party gives up the right to enforce it later.

Independent Parties. The Parties are separate entities. Each Party is responsible for its own personnel, taxes, insurance, and business operations.

Counterparts and electronic signatures. This Agreement may be signed in separate copies, and signatures delivered electronically count as originals. **[OPTIONAL — DELETE IF THE PARTIES WANT WET-INK SIGNATURES ONLY.]**

Force majeure. **[OPTIONAL]** Neither Party is responsible for a delay or failure caused by an event beyond its reasonable control, provided that Party gives prompt notice and resumes performance as soon as it reasonably can. **[LIST ANY EXCLUDED EVENTS, IF ANY]**

15. Notices

Any notice under this Agreement must be in writing and delivered to the other Party at the address below, by hand, by a delivery service that provides proof of delivery, or by email with confirmation of receipt.

To Client:
Name: **[CLIENT NAME]**
Address: **[CLIENT ADDRESS]**
Email: **[CLIENT EMAIL]**

To Contractor:
Name: **[CONTRACTOR NAME]**
Address: **[CONTRACTOR ADDRESS]**
Email: **[CONTRACTOR EMAIL]**

A Party may change its notice information by giving notice under this section.

16. Signatures

By signing below, each Party acknowledges that it has read this Agreement, has had the chance to ask questions about it, and agrees to its terms.

CLIENT

Signature: **[SIGNATURE]**
Printed name: **[NAME]**
Title (if signing for an entity): **[TITLE]**
Date: **[DATE]**

CONTRACTOR

Signature: **[SIGNATURE]**
Printed name: **[NAME]**
Title (if signing for an entity): **[TITLE]**
Date: **[DATE]**

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6. **Worker classification, tax, and jurisdiction-specific rules vary by state and under federal law.** How a worker is classified, how taxes apply, and whether clauses such as non-solicitation or non-competition clauses can be used or applied depend on the facts and on the law that applies to you. We do not tell you which classification, tax treatment, or clause applies in your situation. Consult a professional.
7. **You are responsible for what you fill in and sign.** Every blank in this template is yours to complete. You are responsible for the accuracy of the information you enter, for reading the finished document, and for deciding whether to sign it.
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